

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling on Demurrer & Case Management Order

2025CUPO051412: YESENIA SANDOVAL, et al. vs SANTA PAULA UNIFIED SCHOOL DISTRICT, et al.

**08/18/2026 in Department 44
Demurrer & Case Management Order**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Nature of Proceedings:

- 1) Defendants Santa Paula Unified School District, Jeffrey Weinstein, Laxmi Chair and Zach McClain’s Demurrer to Plaintiffs’ Second Amended Complaint
- 2) Case Management Conference

Tentative Rulings:

1. Demurrer.

Defendants Santa Paula Unified School District, Jeffrey Weinstein, Laxmi Chari, and Zach McClain’s demurrer to two causes of action alleged in Plaintiffs’ Second Amended Complaint is **SUSTAINED WITHOUT LEAVE TO AMEND:**

Fourth Cause of Action, Tom Bane Civil Rights Act Claim. The demurrer to the Fourth Cause of Action for violation of the Tom Bane Civil Rights Act (Civil Code § 52.1) is **SUSTAINED** without leave to amend. Although the SAC adds detail concerning the frequency and location of McClain’s alleged touching, it still fails to allege facts showing that the alleged threats,

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intimidation, or coercion were undertaken with the requisite intent to interfere with MAH III's exercise or enjoyment of his right to education.

Seventh Cause of Action, Negligent Training, Retention, and Supervision. The demurrer to the cause of action captioned in the body of the SAC as the Seventh Cause of Action for Negligent Training, Retention, and Supervision is SUSTAINED without leave to amend. Although actual notice or a specific prior warning is not required, the SAC fails to allege particular facts from which SPUSD supervisory personnel's actual or constructive knowledge of McClain's alleged dangerous propensity may reasonably be inferred. The SAC's allegations concerning inadequate supervision and surveillance-camera monitoring do not establish that supervisory personnel knew or should have known of the particular risk presented by McClain before the alleged misconduct.

For clarity, the SAC contains two causes of action labeled "Seventh Cause of Action." This ruling concerns only the cause of action for Negligent Training, Retention, and Supervision, identified as the eighth cause of action in the SAC's caption. It does not adjudicate the separately pleaded cause of action for Negligent Supervision of a Minor.

Defendants shall answer the remaining causes of action within 10 days unless otherwise ordered. (Cal. Rules of Court, rule 3.1320(g).)

Defendants shall give notice.

2. Case Management Order.

The case is at issue and jury fees have been posted.

LITIGATION DATES:

Event	Date
Trial	September 20, 2027, at 1:30 p.m.
Pretrial Conference	September 10, 2027, at 8:30 a.m.
All other Litigation Dates & Deadlines	Per Code of Civil Procedure

JURY TRIAL

The Court sets this matter for a 6-day **jury trial** on the above trial date in Department 44 of the Ventura County Superior Court. The trial date is a **date certain** for trial under California Rules of Court, Rule 3.1332. The Court **will not** grant any continuances but for a request made pursuant to, and good cause showing under, Rule 3.1332. Trial counsel are ordered to attend trial in person.

PRETRIAL CONFERENCE

The Court also sets a Pretrial Conference on the above pretrial conference date in Department 44. The parties are ordered to **complete mediation at least 30 days prior to the pretrial conference** and **file a joint pretrial conference report** in accordance with the Local Rules for Department 44, which rules are incorporated into and made part of this Case Management Order.

Trial counsel is ordered to appear at the Pretrial Conference and may attend the pretrial conference remotely so long as trial counsel provides timely registration of their intent to appear remotely in accordance with the Court's local rules.

I. Background Relevant to Demurrer

A. Factual Background

This action arises from alleged events during the 2024-2025 school year at Thelma Bedell Elementary STREAM Academy, within the Santa Paula Unified School District ("SPUSD").

Minor plaintiff Marco Antonio Hernandez III ("MAH III") allegedly attended physical-education classes taught by defendant Zach McClain three days per week. Plaintiffs allege that McClain touched MAH III on the shoulders and collarbone on multiple occasions, including with sufficient force to cause pain, and singled him out for this treatment.

On November 20, 2024, MAH III's parents, Yesenia Sandoval and Marco Hernandez, Sr. ("Plaintiffs"), met with principal Laxmi Chari and other District representatives and reported McClain's alleged conduct.

Plaintiffs allege that on December 2, 2024, Chari told Sandoval that McClain had admitted placing his hands on MAH III and that the incident had been captured on video. They further allege that McClain nevertheless continued working at the school.

On December 4, 2024, the parents allegedly were denied entry to the school based on a purported six-year-old child-abuse charge, which they contend was false and defamatory. MAH III subsequently transferred to another school and allegedly has suffered continuing psychological effects.

B. Procedural Background

Plaintiffs filed the original complaint on September 22, 2025, and the First Amended Complaint ("FAC") on January 26, 2026. Defendants demurred to the FAC on February 25, 2026.

On March 27, 2026, the Court sustained the demurrer to the Bane Act cause of action because the FAC did not allege facts showing that the alleged assault interfered with MAH III's right to an education. The Court also sustained the demurrer to the negligent training, retention, and supervision claim because plaintiffs alleged only broad conclusions and no facts showing that defendants had prior notice of McClain's deficiency or dangerous propensity. Both rulings were with leave to amend. The Court overruled the demurrer to the defamation claim and denied defendants' motion to strike. Plaintiffs were given 21 days to amend.

Plaintiffs filed the operative SAC on April 15, 2026. It again asserts the Bane Act claim and the negligent training/retention/supervision theory, with additional allegations concerning the frequency and location of the alleged touching and defendants' purported notice. (The SAC contains a numbering irregularity: it labels both "Negligent Supervision of a Minor" and

“Negligent Training, Retention and Supervision” as the Seventh Cause of Action, although the caption appears to contemplate the latter as the eighth cause of action.)

On May 19, 2026, defendants SPUSD, Weinstein, Chari, and McClain filed the present demurrer, directed to the Bane Act claim and the cause of action denominated in the body of the SAC as the Seventh Cause of Action for negligent training, retention, and supervision. Defendants seek to have both claims dismissed without further leave to amend.

The demurrer was originally noticed for June 23, 2026. On that date, Judge Ben Coats was sitting in Judge Borrell’s absence. Plaintiffs objected to Judge Coats hearing the matter, and the Court continued the demurrer to July 29, 2026 to permit plaintiffs to file a Code Civ. Proc. § 170.6 challenge; notice was waived. The challenge to Judge Coats was subsequently granted.

On July 23, the case was reassigned for all purposes to Department 44, with existing hearing dates to remain unchanged absent further notice. On July 29, 2026, with counsel for both sides appearing, the Court continued the demurrer to August 18, 2026. Notice was expressly waived.

Trial has not yet been set in this case.

II. Preliminary Matters

A. Notice and Service

Service and notice appear proper.

B. Meet and Confer

A meet and confer was mandatory under Code Civ. Proc. § 430.41. Defendants made a documented good-faith effort to initiate the required conference and the parties substantively exchanged their positions in writing, but the record does not establish that an actual attorney-to-attorney conference occurred by any of the methods expressly prescribed by Code Civ. Proc. § 430.41(a). This deficiency, however, is not a basis for refusing to reach the demurrer because Code Civ. Proc. § 430.41(a)(4) expressly provides that a court’s determination that the meet-and-confer process was insufficient “shall not be grounds to overrule or sustain a demurrer.”

III. Discussion

A. Legal Standard: Demurrer for Failure to State Facts Sufficient to Constitute a Cause of Action

Code Civ. Proc. § 430.10 identifies the statutory grounds upon which a defendant may demur to a complaint. Code Civ. Proc. § 430.10(e) applies where “[t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).)

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A demurrer ordinarily tests defects appearing on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

On demurrer, courts admit all material facts properly pleaded and facts that may be inferred from those that are expressly alleged, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Hall v. Great Western Bank* (1991) 231 Cal.App.3d 713, 719, fn.7.) Courts must also consider facts set forth in exhibits attached to the complaint. (*Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567.) Consideration of extrinsic evidence by the court is error. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

A demurrer tests only the legal sufficiency of the complaint, not the plaintiff's ability to prove the facts alleged, or possible difficulty in making such proof. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) Courts must give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. (*Id.* at 38.) "In considering the merits of a demurrer, however, 'the facts alleged in the pleading are deemed to be true, however improbable they may be.' [citations]" (*Hacker v. Homeward Residential, Inc.* (2018) 26 Cal.App.5th 270, 280.)

In construing the allegations, the court is to give effect to specific factual allegations that may modify or limit inconsistent general or conclusory allegations. (*Financial Corporation of America v. Wilburn* (1987) 189 Cal.App.3d 764, 769.) And, if the facts pled in the complaint are inconsistent with facts which are incorporated by reference from exhibits attached to the complaint, the facts in the incorporated exhibits control. (*Holland v. Morse Diesel Int'l, Inc.* (2001) 86 Cal.App.4th 1443, 1447.) Further, irrespective of the name or label given to a cause of action by the plaintiff, a general demurrer must be overruled if the facts as pled in the body of the complaint state some valid claim for relief. (*Quelimane Co. Inc. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 38-39.)

A demurrer directed to the entire complaint must be overruled if any cause of action survives the demurrer. (*Shook v. Pearson* (1950) 99 Cal.App.2d 348, 351.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Id.*)

The burden of showing that a reasonable possibility exists that amendment can cure the defects remains with the plaintiff; neither the trial court nor this court will rewrite a complaint. (*Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1153.) Where the appellant offers no allegations to support the possibility of amendment and no legal authority showing the viability of new causes of action, there is no basis for finding the trial court abused its discretion when it sustained the demurrer without leave to amend. (*New Plumbing Contractors, Inc. v. Nationwide Mutual Ins. Co.* (1992) 7 Cal.App.4th 1088, 1098; *HFH, Ltd. v. Superior Court* (1975) 15 Cal.3d 508, 513, fn. 3.)

When considering a demurrer to an original complaint, it is generally considered an abuse of discretion to deny leave to amend unless the complaint "shows on its face" that amendment

would be futile, even in the absence of a request for leave to amend. (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688-689.)

B. The SAC Fails to Cure the Previously Identified Defects in the Bane Act and Negligent Training, Retention, and Supervision Claims, Warranting Sustaining the Demurrer Without Leave to Amend

1. Fourth Cause of Action - Bane Act

The Court previously sustained the demurrer to this claim because, although the FAC suggested repeated assaults, the additional assaults were not pleaded with particularity and, more fundamentally, Plaintiffs had not alleged facts showing that the alleged assault interfered with MAH III's right to an education. (Minute order 3/27/26.)

The SAC adds allegations that MAH III attended McClain's physical education classes on Mondays, Wednesdays, and Fridays; that McClain touched his shoulders and collarbone several times during those classes, either on the grass or near the physical education equipment; and that MAH III did not consent to the touching. The SAC also alleges that Defendants acted to interfere with MAH III's right to a safe learning environment and that SPUSD continued to permit McClain to teach after learning of the alleged incidents.

These additions provide somewhat greater detail concerning the alleged touching, but do not cure the substantive deficiency identified in the prior ruling. Civil Code § 52.1 requires interference or attempted interference with a protected right "by threat, intimidation, or coercion." In the school context, *Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860 explained that a Bane Act claim requires more than proof of an actionable battery: the improper conduct must cause or attempt to cause the loss of the protected right. *Austin B.* affirmed nonsuit where the evidence could establish battery but did not establish that the teacher's aggression was intended as a means of interfering with the students' right to education. (*Id.* at 882-883, 887.)

Nor is the defect that Plaintiffs failed to allege some additional threat or coercive act independent of the alleged battery. *Cornell v. City and County of San Francisco* (2017) 17 Cal.App.5th 766 makes clear that the relevant inquiry is whether the defendant acted with the specific intent to violate the protected right. That requires facts supporting the conclusion that the defendant committed the act with the particular purpose of depriving the plaintiff of the interests protected by that right; reckless disregard of the right itself may suffice. (*Id.* at 801-804.)

Here, the SAC alleges facts supporting the conclusion that McClain intentionally touched MAH III and that the alleged conduct ultimately caused MAH III to stop attending Thelma Bedell and transfer to another school. Indeed, ¶ 30 alleges that, after reporting the incidents, MAH III was unable to attend Thelma Bedell and transferred because of his fear and sense of powerlessness. But the resulting inability or unwillingness to continue attending the school does not itself establish that McClain committed the alleged touching for the purpose of interfering with MAH III's educational rights. The SAC contains no nonconclusory allegation that McClain touched, threatened, intimidated, or coerced MAH III in order to prevent him from attending school, participating in physical education, or otherwise exercising a protected educational right.

The opposition emphasizes the added allegations concerning the frequency, location, timing, and physical nature of the touching, as well as MAH III's eventual transfer. The reply correctly observes, however, that most of those matters (including repeated forceful touching, lack of consent, being singled out, and MAH III's inability to continue attending Thelma Bedell) were already alleged in the FAC and were before the Court when it sustained the prior demurrer. The materially new allegations principally identify the general locations of the touching and MAH III's physical-education schedule. Those allegations add factual detail to the alleged batteries, but do not supply the missing nexus between the alleged coercive conduct and interference with the right to education.

Paragraphs 66, 67, and 70 do not alter that conclusion. They characterize Defendants' conduct as malicious, oppressive, intentionally interfering with MAH III's right to a safe learning environment, and undertaken with an intention to cause injury or conscious disregard of his rights. These are conclusions concerning intent. The underlying factual allegations still describe alleged physical misconduct followed by educational and psychological consequences, not conduct undertaken with the purpose of depriving MAH III of his educational rights.

Accordingly, the SAC does not cure the defect identified in the March 27, 2026, ruling, and the demurrer to the fourth cause of action is SUSTAINED.

Further leave to amend is not warranted. Plaintiffs previously received leave specifically to cure this deficiency. The opposition again requests leave if the Court finds the SAC insufficient but identifies no additional facts that could be pleaded to establish the required connection between the alleged threats, intimidation, or coercion and interference with MAH III's educational rights. Because Plaintiffs have already amended in response to the Court's specific ruling and have not identified how another amendment would cure the remaining defect, the demurrer is sustained without leave to amend as to this cause of action.

2. Cause of Action for Negligent Training, Retention, and Supervision

The demurrer to the seventh cause of action for negligent training, retention, and supervision is sustained without leave to amend.

The Court previously sustained the demurrer to this cause of action because the FAC alleged only broad conclusions and no facts from which SPUSD's prior notice of McClain's alleged deficiency or dangerous propensity could be found. (Minute Order, 3/27/26.) The SAC now alleges that SPUSD should have discovered McClain's alleged unfitness through more adequate supervision and monitoring, that it lacked sufficient procedures to monitor teachers, that surveillance cameras were present on campus but were inadequately positioned or reviewed, and that Defendants "knew, or should have known" of McClain's inappropriate behavior.

Plaintiff is correct that the claim does not require actual notice or a specific prior warning. *Deutsch v. Masonic Homes of California, Inc.* (2008) 164 Cal.App.4th 748, 783-784 rejected an instruction requiring "actual notice" or a "specific warning." But *Deutsch* did not eliminate the knowledge requirement; it recognized actual or constructive knowledge and explained that

liability rests on circumstances in which the employer antecedently had reason to believe the employment created an undue risk of harm.

More recent school-district authority confirms the distinction. In *Roe v. Hesperia Unified School Dist.* (2022) 85 Cal.App.5th 13, 25-31, the court held that supervisory personnel need not have actual knowledge of prior abuse, but the complaint must allege facts permitting an inference that supervisory or administrative personnel knew or should have known of the employee's dangerous propensity. There, constructive knowledge was adequately alleged because principals and an assistant principal allegedly witnessed the employee engage in suspicious and policy-violating physical contact with students and escort students to empty rooms.

Rancho Cucamonga Central School Dist. v. Superior Court (2025) 116 Cal.App.5th 718 expressly distinguishes a claim for negligent supervision of students from one for negligent supervision of an employee. The latter requires actual or constructive knowledge by supervisory personnel of the employee's dangerous propensity. The court contrasted *Roe* and held that, where no district employee witnessed inappropriate conduct or anything that reasonably should have triggered suspicion, the requisite constructive knowledge was absent. This distinction is material here because the SAC separately pleads a cause of action for negligent supervision of MAH III; the present demurrer challenges the separate claim for negligent training, retention, and supervision of McClain.

The constructive-knowledge standard includes information a defendant exercising reasonable care or diligence should have discovered. In the opinion, *C.F. v. Alternative Family Services* (2026) 120 Cal.App.5th 1208, 1235, the court confirms that constructive knowledge rests on the defendant's duty to discover information and explains that, in negligent hiring, supervision, and retention cases, liability requires facts showing the employer knew or should have known of the particular risk presented by the employee. Thus, the absence of a prior complaint or warning is not necessarily dispositive. There nevertheless must be factual allegations from which constructive knowledge of McClain's particular dangerous propensity can reasonably be inferred.

The SAC still lacks such facts. It does not allege that any administrator or supervisory employee observed McClain engage in inappropriate conduct before the alleged injuries; that anyone reported prior misconduct by McClain; that McClain had previously been investigated, disciplined, or warned; or that any supervisor reviewed surveillance footage revealing inappropriate conduct before the incidents alleged. Instead, the SAC alleges essentially that Defendants would have learned of McClain's conduct had they supervised him more effectively and reviewed surveillance cameras more frequently.

These allegations plead negligent supervision, but do not plead the facts necessary to support the conclusion that SPUSD knew or should have known McClain presented the particular risk at issue. Otherwise, the required constructive-knowledge element would effectively disappear whenever a plaintiff alleged that more intensive monitoring would have uncovered an employee's misconduct. *Rancho Cucamonga* confirms that negligent supervision of an employee requires facts establishing actual or constructive knowledge of the employee's dangerous propensity, rather than merely inadequate supervision in the abstract.

The allegation that surveillance footage existed of McClain placing his hands on MAH III does not cure the problem. The SAC alleges that Chari informed Sandoval on December 2, 2024 that McClain had confessed on November 20 and that a video recording existed. But the SAC does not allege that District supervisory personnel viewed that footage, or otherwise became aware of it, before the conduct giving rise to the asserted negligent-training/retention/supervision claim. Nor does the SAC identify subsequent touching occurring after Defendants acquired actual knowledge on November 20 from MAH III's parents. Thus, the post-report knowledge does not supply the missing notice necessary to connect negligent retention or supervision of McClain to the alleged injuries.

The reply's argument is sound. The prior ruling did not require actual notice; it required facts "from which this notice may be found." The SAC continues to allege no particular pre-injury complaint, observation, warning sign, investigation, or comparable circumstance from which supervisory personnel's actual or constructive knowledge of McClain's alleged dangerous propensity may reasonably be inferred.

Accordingly, the demurrer to the cause of action for negligent training, retention, and supervision is SUSTAINED.

Further leave to amend is denied. Plaintiffs already received leave to plead facts establishing notice, and the SAC does not cure that defect. Although the opposition requests another opportunity to amend, it identifies no additional facts showing what District supervisory personnel knew or reasonably should have known about McClain before the alleged misconduct. A plaintiff seeking further leave bears the burden of identifying specific facts demonstrating a reasonable possibility that the defect can be cured. (*Roe, supra*, at 22-23.) Plaintiffs have not made that showing.

The demurrer to the negligent training, retention, and supervision cause of action is therefore sustained without leave to amend. This ruling does not adjudicate the separately pleaded cause of action for negligent supervision of the minor plaintiff, which Defendants have not challenged by this demurrer.